



CHAPTER xx

An Act to incorporate and confer powers upon the
Faculty of Homœopathy and for other purposes.
[12th July 1950.]

WHEREAS the unincorporated association called “the
British Homœopathic Society” was established in the
year one thousand eight hundred and forty-four for the
advancement of the principles and practice of homœopathy:

And whereas the London Homœopathic Hospital was founded
in the year one thousand eight hundred and forty-nine and a
school of homœopathy was opened at that hospital in the year
one thousand eight hundred and seventy-seven:

And whereas in the year one thousand nine hundred and forty-
three the British Homœopathic Society was merged in the Faculty
of Homœopathy (hereinafter referred to as “the existing
Faculty”) which was incorporated under the Companies Act 19 & 20 Geo. 5.
1929 as a company limited by guarantee and not having a share c. 23.
capital:

And whereas in the year one thousand nine hundred and forty-
eight by the authority of His Majesty the King the said hospital
became known as the Royal London Homœopathic Hospital:

And whereas the practice of homœopathy has been carried on
continuously for one hundred years at the said hospital and
instruction of members of the medical profession by post-graduate
courses has been undertaken there by the existing Faculty:

And whereas by the National Health Service Act 1946 there 9 & 10 Geo. 6.
were transferred to the Minister of Health all voluntary and c. 81.
municipal hospitals including the Royal London Homœopathic

Hospital but the practice of homœopathy and post-graduate courses in homœopathy are carried on at that hospital as heretofore:

And whereas it is expedient that the members of the existing Faculty should be incorporated and have powers conferred on them as in this Act provided:

And whereas the Minister of Health has given assurances that under the National Health Service Act 1946 homœopathic institutions will be enabled to provide their own form of treatment and that the continuity of the characteristics of those institutions will be maintained:

And whereas the provision of facilities for the continuance of homœopathic research education and practice is likely to be the responsibility of persons having interest in homœopathic science and its development in the new administration under the said Act:

And whereas by reason of the said circumstances a trust was established in the year one thousand nine hundred and forty-eight under the name of "the Homœopathic Research and Educational Trust" for the advancement of the teaching and practice of homœopathy and for research in matters relating to homœopathy and a sum of thirty thousand pounds has already been subscribed for that purpose:

And whereas the following persons are the existing trustees of the said trust:—

Sir Lynden Livingston Macassey K.B.E. K.C. ;
Sir Edward Robert Peacock G.C.V.O. ;
Frederick Montague Baron Amwell of Islington C.B.E. ;
Sir John Weir G.C.V.O. M.B. Ch.B.Glas. ;
John Paterson M.B. Ch.B.Glas. D.P.H.Camb. ;
Dame Myra Hess D.B.E. ;
Sir Clarence Thomas Albert Sadd C.B.E. D.L. J.P. ;
William Lees Templeton M.D. Ch.B.Glas. ;
Albert Edward Bridges Webb ;
George John Gordon Bruce Baron Balfour of Burleigh D.L. J.P. ;
Rupert Palmer Colomb C.B. ;
The Lady Megan Arvon Lloyd George J.P. M.P. ;

And whereas the purposes aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Faculty of Homœopathy Act 1950.

2. In this Act unless the context otherwise requires—

Interpretation.

“the byelaws” means the byelaws for the time being in force by virtue of the provisions of this Act ;

“the council” means the council of management of the Faculty constituted and appointed as provided by this Act ;

“the existing Faculty” means the Faculty of Homœopathy incorporated under the Companies Act 1929 ;

“the Faculty” means the Faculty of Homœopathy incorporated by this Act.

3. The persons who immediately before the passing of this Act were members of the existing Faculty and all such other persons as shall hereafter become members of the Faculty in accordance with the byelaws shall be and are hereby incorporated by the name of “the Faculty of Homœopathy” for such objects and purposes as in this Act appear and by that name shall have perpetual succession and a common seal and may by and in the same name sue and be sued and do all things incidental or appertaining to a body corporate.

Incorporation
of Faculty.

4.—(1) The objects of the Faculty shall be to continue the work hitherto carried on by the existing Faculty for the advancement of the principles and the extension of the practice of homœopathy and to do all such other things as are incidental or the Faculty may deem conducive to the attainment of those objects.

Objects of
Faculty.

(2) Without prejudice to the generality of subsection (1) of this section the objects of the Faculty are—

(a) to advance and extend the principles and practice of homœopathy ;

(b) to establish the status of fellowship of the Faculty and to admit to such status members of the Faculty who are judged by the Faculty to be qualified for such status ;

(c) to admit to the membership of the Faculty such persons as shall be eligible in accordance with the regulations thereof and shall conform thereto ;

(d) to grant to medical practitioners registered in the countries in which they practise diplomas certificates or other equivalent recognition of special knowledge in homœopathy either alone or in co-operation with teaching or examining bodies authorised to grant recognition as aforesaid :

Provided that every diploma certificate or other recognition granted independently by the Faculty shall contain on the face of it a statement to the effect that it does not of itself confer or purport to confer any

legal qualification to practise homœopathy and that it is not issued under or in pursuance or by virtue of any government sanction or authority but that it is issued by the authority of the Faculty only ;

- (e) to consider and advise as to any course of study and technical training and to diffuse any information calculated to promote and ensure the fitness of persons desirous of qualifying for membership of the Faculty ;
- (f) to provide establish and maintain offices examination halls lecture rooms libraries and museums with all requisite equipment and to institute and provide such courses of lectures and demonstrations as may be deemed desirable with a view to promoting the objects of the Faculty ;
- (g) to diffuse among members and others information on all matters affecting homœopathy and to establish print publish issue and circulate such papers journals magazines books periodicals circulars calendars and publications as may seem conducive to any of these objects or in any way beneficial to the work of the Faculty.

Transfer of
property.

5.—(1) All the real and personal property including things in action and all rights and privileges which immediately before the passing of this Act belonged to or were held by or in trust for or in connection with the existing Faculty shall by virtue of this Act and without any conveyance transfer or other instrument be and the same are hereby transferred to and vested in the Faculty.

(2) The production of a copy of this Act together with a statutory declaration of the secretary of the existing Faculty and by the person or corporation in whose name any registered land or any stock transferred by virtue of this Act is standing describing for the purpose of identification the land or stock so transferred shall be sufficient authority to the Chief Land Registrar of His Majesty's Land Registry to enter the name of the Faculty as proprietor of the said land or to any company in whose books any such stock is standing to transfer the stock into the name of the Faculty and to pay any dividends interest or bonuses thereon to the Faculty.

(3) In this section—

“ company ” includes the Bank of England and any corporation or person keeping books in which any stock is registered or inscribed ;

“ stock ” includes any share fund annuity or other security.

Power to hold
and acquire
lands.

6. The Faculty may hold without licence in mortmain all the land which has been acquired by the existing Faculty whether by will gift purchase or otherwise and has not been disposed of by them and the Faculty may purchase or acquire or take on lease

or may accept a gift of and may hold without licence in mortmain any land which in their opinion it is desirable that they should acquire or hold :

Provided that the Faculty shall not purchase land unless the land is required for actual occupation immediate or future for the purposes of the Faculty and not as an investment but nothing in this proviso shall prevent the exercise of the power to invest in freehold ground rents conferred by section 8 (Powers of investment) of this Act.

7. The Faculty may from time to time sell mortgage charge let surrender exchange or otherwise dispose of the land or any personal estate and property (including moneys secured on mortgage of or charged upon any land) or any part thereof by this Act vested in the Faculty or which shall hereafter be vested in the Faculty or any easements rights or privileges to be exercised or enjoyed in over upon or under the same or any part thereof and may do and execute all such acts deeds matters and things as may be necessary for effectuating and completing any such sale mortgage charge letting surrender exchange or disposition.

Power to sell mortgage etc. lands etc.

8. Any part of the capital or the income of the Faculty which is not required for the time being for the purposes of the Faculty may be invested by the Faculty in any of the following modes or objects of investment:—

Powers of investment.

(a) in any investment from time to time authorised by law for the investment of trust funds ;

(b) in the public stocks or funds or government securities of any part of the British Commonwealth of Nations or of His Majesty's dominions or of the territories under His protection or of the United States of America ;

(c) in freehold ground rents well secured in accordance with the report of a duly qualified valuer.

9.—(1) All property and funds of the existing Faculty which prior to the passing of this Act shall be held for the general purposes of the existing Faculty may be applied by the Faculty in furtherance of any of the objects of the Faculty.

Application of property of Faculty.

(2) In the case of property or funds which prior to the passing of this Act shall be held by or on behalf of the existing Faculty in trust to apply the income thereof for the general purposes of the existing Faculty the income thereof may be applied by the Faculty in furtherance of any of the objects of the Faculty.

(3) Save as aforesaid any property or fund which prior to the passing of this Act shall be held by or on behalf of the existing Faculty for any special purpose shall continue after the passing of this Act to be used by the Faculty for such special purpose.

Dissolution
of existing
Faculty.

10. On and from the passing of this Act the existing Faculty shall be and is hereby dissolved and the memorandum and articles of association thereof shall as to any prospective operation be wholly void and the existing Faculty and the members thereof shall be exempted from all the provisions restrictions and requirements of any Act which applied to the existing Faculty and the members thereof as such:

Provided that nothing in this Act contained shall affect the previous operation of the said memorandum and articles or anything done or suffered or any right obligation or liability acquired accrued or incurred thereunder and with respect to all such rights obligations and liabilities the Faculty and the property of the Faculty shall to all intents and purposes represent the existing Faculty and the members thereof as such and the property of the existing Faculty:

Provided also that any diploma certificate or other equivalent recognition of special knowledge in homœopathy granted or issued by the existing Faculty shall be deemed for all purposes to have been granted or issued by the Faculty.

Bequests etc.
to existing
Faculty.

11. Any devise bequest or gift contained in the will or in a codicil to the will of any person dying before or after the passing of this Act or in a deed whether executed before or after the passing of this Act in favour of or directed to be administered by or in connection with the existing Faculty or a charity or object subsidiary or ancillary to the existing Faculty shall not fail by reason of anything in this Act but shall as from the passing of this Act take effect in favour of or be administered by or in connection with the Faculty.

Receipt for
bequests etc.
to existing
Faculty.

12. In any case where by the will or a codicil to the will of any person having died before or dying after the passing of this Act or by any deed whether executed before or after the passing of this Act any bequest or gift has been or shall be made in favour of or directed to be administered by or in connection with the existing Faculty or a charity or object subsidiary or ancillary to the existing Faculty and the legal personal representatives of such person or any trustees in whom such bequest or gift is vested are unable for any reason to obtain the receipt for such bequest or gift of any person whose receipt is an effectual discharge for the same the receipt of the treasurer or the secretary of the Faculty shall be an effectual discharge to such legal personal representatives or trustees as aforesaid (as the case may be) and shall exonerate them from being concerned to see to the application of such bequest or gift and from being answerable for the misapplication or non-application thereof.

Transfer of
liabilities.

13. All debts liabilities contracts and obligations properly incurred or entered into by or on behalf of the existing Faculty

shall by virtue of this Act be and the same are hereby transferred and attached to the Faculty and shall be discharged and satisfied by the Faculty.

14.—(1) The Faculty shall be under the management of a Council. council and the council shall subject to the provisions of this Act and of the byelaws control the property and conduct the affairs of the Faculty.

(2) The first members of the council of the Faculty shall be the following persons:—

Margery Grace Blackie M.D. B.S.Lond. M.R.C.S.Eng.
L.R.C.P.Lond. ;

John Paterson M.B. Ch.B.Glas. D.P.H.Camb. ;

Frederick Bennett Julian M.C. B.A. Hons.Phil.Lond. M.B.
Ch.B. B.A.O. M.Sc. N.U.I. ;

William Lees Templeton M.D. Ch.B.Glas. ;

Alva Benjamin M.B. Ch.M.Sydney ;

Percival George Quinton M.D. B.S.Lond. M.R.C.S.Eng.
L.R.C.P.Lond. ;

Sir John Weir G.C.V.O. M.B. Ch.B.Glas. ;

James Douglas Kenyon B.Sc. M.B. Ch.B.Vict. M.R.C.S.Eng.
L.R.C.P.Lond. ;

Donald MacDonald Foubister B.Sc. M.B. Ch.B. D.C.H. ;

George Ruthven Mitchell L.R.C.P. & S.Edin. L.R.F.P.S.
Glas. ;

William Thomson Walker M.B.E. M.A.Cantab. M.D. ;

Andrew Kellner M.D.Lieipzig L.M.S.S.A.Lond. ;

Duncan MacGillivray Cameron M.B. Ch.B.Glas. ;

Andrew Tocher Cunningham M.C. M.B. Ch.B.St.And. ;

James Campbell MacKillop M.B. Ch.B.Glas. ;

Stuart McAusland B.A.Lond. M.D. Ch.B.L'pool M.R.C.S.
Eng. L.R.C.P.Lond. D.A.Eng. M.F.Hom. ;

William Briggs M.B. Ch.B.Glas. L.R.C.P. L.R.C.S.Edin.
L.R.F.P.S.Glas.

(3) Future councils shall be elected by the members in accordance with the byelaws and for the purpose of determining the retirement of members of the first council under the byelaws the period of office of such members as councillors of the existing Faculty shall be taken into account.

15. The council may appoint such committees as they shall think fit and subject to the byelaws may delegate to such committees such powers and duties as they deem expedient. Committees.

16.—(1) The council shall have power from time to time to make alter and revoke byelaws with respect to the management of the Faculty its undertaking property and affairs the council and the officers servants and employees of the Faculty. Byelaws.

(2) No byelaw shall be revoked or altered and no new byelaw shall be made until submitted to and approved by the Faculty at a general meeting.

First byelaws.

17. The first byelaws shall be those set forth in the schedule to this Act and shall continue in force until altered or revoked in accordance with the provisions of this Act. Such byelaws shall supersede any articles of association or other regulations relating to the existing Faculty in force at the passing of this Act.

Proof of
byelaws.

18. A printed copy of the byelaws purporting to be certified by the secretary of the Faculty to be the byelaws of the Faculty for the time being in force shall be admissible in all proceedings as prima facie evidence thereof without further proof.

Auditing of
accounts.

19. Once at least in every year the accounts of the Faculty shall be examined and the correctness of the balance sheet ascertained by one or more properly qualified auditor or auditors:

Provided that no person shall be qualified for appointment as auditor unless he is a member of one or more of the following bodies:—

The Institute of Chartered Accountants in England and Wales;

The Society of Incorporated Accountants and Auditors;

The Society of Accountants in Edinburgh;

The Institute of Accountants and Actuaries in Glasgow;

The Society of Accountants in Aberdeen;

The Association of Certified and Corporate Accountants;

The Institute of Chartered Accountants in Ireland;

Any other body of accountants established in the United Kingdom and for the time being recognised by the Board of Trade for the purposes of the provisions of section 161 of the Companies Act 1948 relating to the qualification for appointment as auditor of a company other than an exempt private company.

11 & 12 Geo. 6.
c. 38.Copy of Act
to be
registered.

20. The Faculty shall deliver to the Registrar of Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Faculty shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any officer of the Faculty who knowingly and wilfully authorises such default shall incur the like penalty. Every penalty under this section shall be recoverable summarily.

There shall be paid to the registrar by the Faculty on such copy being registered the like fee as is for the time being payable under the Companies Act 1948 on registration of any document other than the memorandum or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding-up in England.

Costs of Act.

21. All costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Faculty out of the funds of the Faculty.

SCHEDULE

FIRST BYELAWS OF THE FACULTY

INTERPRETATION

1. In these byelaws unless there be something in the subject or Interpretation. context inconsistent therewith—

- “The Act” means the Faculty of Homœopathy Act 1950 ;
 - “Associate” means an Associate of the Faculty ;
 - “Branch” means a Branch constituted as hereinafter provided ;
 - “The British Empire” means and includes the British Isles the British Commonwealth of Nations and any British Dominion Union State Colony Dependency Protected Territory or Mandated Territory ;
 - “The British Isles” means the United Kingdom of Great Britain and Northern Ireland Eire the Channel Islands and the Isle of Man ;
 - “Corresponding Member” means a Corresponding Member of the Faculty ;
 - “The Council” means the Council of Management for the time being of the Faculty ;
 - “The Faculty” means the Faculty of Homœopathy incorporated by the Act ;
 - “Fellow” means a Fellow of the Faculty ;
 - “Honorary Fellow” means an Honorary Fellow of the Faculty ;
 - “Honorary Member” means an Honorary Member of the Faculty ;
 - “Member” means a Member of the Faculty but does not include an Associate or a Corresponding Member ;
 - “member” (commencing with a small “m”) means a member of the Faculty (whether a Fellow or Honorary Member or a Member) except when used in connection with membership of the Council or of any Committee but does not include an Associate or a Corresponding Member ;
 - “The office” means the principal office for the time being of the Faculty ;
 - “The Register” means the Register of members ;
 - “The Regulations” means the Regulations set forth in the appendix hereto as from time to time altered in accordance with the provisions hereinafter contained ;
 - “The Rules” means the Rules for the management of the Faculty made by the Council and for the time being in force ;
 - “In writing” and “writing” includes printing lithography and other modes of representing or reproducing words in visible form ;
- Words importing only the singular include the plural number and vice versa ;
- Words importing only the masculine gender include the feminine gender ;
- Words importing persons include corporations.

Register.

2. The members of the existing Faculty and such other persons as shall be admitted to membership of the Faculty in accordance with the Byelaws and Regulations shall be members and their names and addresses shall be entered in the Register accordingly. Every member (other than members of the existing Faculty) shall either sign a written consent to become a member or sign the Register on becoming a member.

Classes of members.

3. There shall be four classes of members namely (1) Fellows (2) Honorary Fellows (3) Honorary Members and (4) Members. The Fellows shall consist of such persons as may from time to time be elected as such in accordance with the Regulations.

Eligibility for fellowship.

4. No person shall be eligible to be elected as a Fellow (otherwise than as a First Fellow) unless—

- (i) he shall have been a Member for a period of at least five years but so that membership of the existing Faculty or the unincorporated association called “the British Homœopathic Society” shall for this purpose be deemed to be membership of the Faculty; and
- (ii) (save as in this sub-paragraph and in Byelaw 5 provided) he shall after having become a Member or a Member of the existing Faculty or the said unincorporated association have contributed to the Faculty or the existing Faculty or the said unincorporated association at least three original homœopathic communications approved by the Council. Provided that any candidate for election who has contributed one or two original homœopathic communications prior to the 7th day of July 1950 may at any time prior to the 7th day of July 1951 contribute such further number of contributions up to three. Upon the said three communications being approved by the Council such candidate shall be eligible for election and sub-paragraph (iii) of this Byelaw shall not apply to such candidate; and
- (iii) in respect of elections on and after the 7th day of July 1950 he shall have passed written and clinical examinations of a standard which shall be approved by the Council and which shall be similar to the standard required in other comparable higher examinations.

None of the foregoing provisions shall apply to First Fellows.

Honorary Fellows.

5. The Faculty in General Meeting may by resolution and upon the recommendation of the Council elect as an Honorary Fellow any Member who has at any time distinguished himself in science or literature notwithstanding that he may not have fulfilled the conditions prescribed by Byelaw 4 (ii) and (iii).

Eligibility for membership.

6. No person shall be eligible for membership unless—

- (i) he shall be entered on the British Register of Medical Practitioners or be eligible for entry thereon by virtue of being entered on the register of duly qualified medical practitioners of some part of the British Empire; and
- (ii) he is an Associate; and
- (iii) he shall have passed such examinations as may from time to time be prescribed by the Regulations.

Provisions contained in sub-clauses (ii) and (iii) of this Byelaw shall not apply to First Fellows First Honorary Members or First Members.

7. Any person who shall have been a member or a member of the existing Faculty or the unincorporated association called "the British Homœopathic Society" for a period of twenty-five years or more or under exceptional circumstances (as to which the decision of the Council shall be final) any other member may by resolution of the Council be elected as an Honorary Member.

An Honorary Member shall for all purposes be deemed to be a member save and except that he shall not be liable to pay any annual subscription.

8. A person qualified in accordance with the Byelaws or Regulations may if the Council shall think fit be admitted a Fellow or Member after signing such declaration as may from time to time be prescribed by the Council and after signing such form of application and agreement to be bound by the Byelaws and Regulations as the Council may from time to time require Every Fellow or Member shall before admission pay such admission fee (if any) and shall pay such annual subscription as shall be prescribed by or pursuant to the Byelaws and Regulations.

Conditions of
fellowship and
membership.

9. The Council shall have power to elect as Associates such persons and in such manner as the Regulations may provide and to admit Associates so elected to such privileges (not being inconsistent with the provisions of the Byelaws or the Regulations) and subject to such conditions as regards the payment of subscriptions and otherwise as may from time to time be conferred or imposed on them by or under the Regulations An Associate shall not be a member for any purpose and no Associate shall be qualified to act as a member of the Council or as an officer of the Faculty or to vote or be entitled to speak at any General Meeting of the Faculty An Associate shall be entitled to receive notice of and to be present at any General Meeting.

Associates.

10. The Council may elect any person being a medical practitioner engaged in the practice of homœopathy outside the British Isles and being duly registered as a medical practitioner in the country in which he practises to be a Corresponding Member.

Corresponding
Members.

A Corresponding Member shall not be deemed to be a member for any purpose and shall not be liable to pay any subscription to the Faculty.

Any Corresponding Member shall cease to be such a Corresponding Member upon a resolution of the Council to that effect being passed by a majority of not less than two-thirds of those present and voting.

11. No Fellow or Member or Associate shall enjoy any of the privileges of fellowship membership or associateship until he has paid his admission fee (if any) annual subscription and arrears thereof (if any) and has fulfilled such other requirements as may be laid down in the Byelaws and Regulations No Fellow or Member shall be entitled to exercise any voting rights unless he has paid his admission fee (if any) and any annual subscription which may be due.

Privileges
dependent on
payment of
admission
fees and
subscriptions.

Removal
of name if
subscription
in arrear.

12. The Council may order if it shall think fit the removal from the Register of the name of any Fellow or Member and the removal from the list of Associates of the name of any Associate who is in arrears with his subscriptions for twelve months or more and in the case of a Fellow or Member such name shall be removed from the Register accordingly and in the case of an Associate such name shall be removed from the list of Associates accordingly and the Fellow Member or Associate whose name is so removed shall thereupon cease to be a Fellow Member or Associate as the case may be.

Rights of
Fellows etc.
personal only.

13. The rights and privileges of every Fellow Honorary Fellow Honorary Member Member and Associate shall be personal to himself and shall not be transferred or transmitted.

When a Fellow
etc. is to cease
to be so.

14. A Fellow Honorary Fellow Honorary Member Member or Associate shall cease to be a Fellow Honorary Fellow Honorary Member Member or Associate in the following circumstances:—

- (a) If by a notice in writing to the Faculty he resigns his fellowship honorary fellowship honorary membership membership or associateship;
- (b) If his name shall be erased from the Medical Register by the General Medical Council or from the Medical Register of any Dominion Commonwealth Union State Colony Dependency Protected Territory or Mandated Territory forming part of the British Empire or of any other country;
- (c) If he be expelled under the provisions of the next succeeding Byelaw;
- (d) If (not being an Honorary Fellow or an Honorary Member) his name be removed from the Register or list of Associates under Byelaw 12:

Provided that a notice of resignation shall take effect only as from the date of the Ordinary General Meeting next succeeding the date of the service of such notice or in the case of a notice served less than one month from the date of the next succeeding Ordinary General Meeting then as from the date of the second next succeeding Ordinary General Meeting and then only if the Fellow Member or Associate desirous of resigning shall have paid and shall pay all arrears of subscriptions and current subscriptions due from or payable by him.

EXPULSION

Compulsory
resignation.

15. If at any time the Council shall be of the opinion that the interests of the Faculty so require they may by notice in writing call upon any Fellow Honorary Fellow Honorary Member Member or Associate to resign from the Faculty and so that notwithstanding anything contained in the Byelaws a resignation following such notice shall take effect immediately Any such notice shall be served on the Fellow Honorary Fellow Honorary Member Member or Associate concerned and shall specify the date of a meeting of the Council at which the person concerned shall (if he so desires) be given an opportunity of personally stating his case and defending himself before the Council the said meeting being one to be held not earlier than fourteen days nor more than twenty-eight days after the date of the notice If at such meeting of the Council the Council shall resolve

that it is desirable that the person concerned should resign as aforesaid such person shall forthwith so resign (such resignation to take effect immediately) or in default such person may be expelled by resolution passed by a majority of not less than three-fourths of the members present and voting at an Extraordinary General Meeting of the Faculty to be held within six weeks after the date of such resolution of the Council. Provided that the person concerned shall have the same right at such meeting of personally stating his case and defending himself as is hereinbefore prescribed in the case of such meeting of the Council aforesaid.

GENERAL MEETINGS

16. A General Meeting of the Faculty shall be held once at least in every year and at such time (not being more than fifteen months after the holding of the last preceding General Meeting) and place as may be prescribed by the Faculty in General Meeting or in default at such time and place as the Council may appoint. The above-mentioned General Meetings shall be called Ordinary Meetings and all other meetings of the Faculty (except Sessional Meetings) shall be called Extraordinary Meetings.

Ordinary and
Extraordinary
General
Meetings.

17. When it is proposed to pass a resolution at least seven clear days' notice specifying the place day and hour of meeting and in case of special business the general nature of such business shall be given to all members by notice sent by post or otherwise served as by the Byelaws provided.

Notice of
meetings.

18. The secretary shall in case of an Ordinary General Meeting send with the notice of the meeting a printed copy of the Council's annual report and the income and expenditure account and balance sheet together with a copy of the Auditors' report.

Contents of
notice.

19. The Council or the President may whenever they think fit convene an Extraordinary Meeting and the Council shall on the requisition in writing of at least ten members forthwith convene an Extraordinary Meeting and in the case of such requisition the following provisions shall have effect:—

Convening of
Extraordinary
Meetings by
Council or on
requisition.

(1) The requisition must state the objects of the meeting and must be signed by the requisitionists and deposited at the office and may consist of several documents in like form each signed by one or more requisitionists:

(2) If the Council do not within twenty-one days from the date of the deposit of the requisition proceed duly to convene a meeting the requisitionists or a majority of them may convene the meeting but any meeting so convened shall not be held after three months from the date of such deposit:

(3) Any meeting convened under this Byelaw by the requisitionists shall be convened in the same manner as nearly as possible as that in which meetings are to be convened by the Council.

20. Subject to the Regulations all meetings of the Faculty or of the Council or of any Committee shall be held at such place or places as the Council shall from time to time appoint.

Place of
meetings.

As to omission
to give notice.

21. The accidental omission to give any notice of a meeting to or the non-receipt of any such notice by any member or Associate shall not invalidate any resolution passed at the meeting.

PROCEEDINGS AT GENERAL MEETINGS

Business of
Ordinary
General
Meeting.

22. The business of an Ordinary Meeting shall be to receive and consider the income and expenditure account and balance sheet and the reports of the Council and of the Auditors and of the Honorary Treasurer to elect officers and members of the Council falling to be elected thereat to elect Auditors and fix their remuneration to fix the date of the next Ordinary Meeting and to transact any other business which under the Byelaws or Regulations ought to be transacted at an Ordinary Meeting. All other business transacted at an Ordinary Meeting and all business transacted at an Extraordinary Meeting shall be deemed special.

Special
business.

Quorum at
General
Meetings.

23. Five members personally present shall be a quorum for an Ordinary Meeting and twelve members personally present shall be a quorum for an Extraordinary Meeting. No business shall be transacted at any General Meeting unless the quorum requisite be present at the commencement of the business.

Chairman of
General
Meetings.

24. The President or in his absence or if he shall be unwilling to act the Senior Vice-President or in his absence or if he be unwilling to act the Junior Vice-President shall take the chair at every General Meeting or if at any meeting none of those be present within fifteen minutes after the time appointed for holding such meeting and willing to act the members personally present shall choose another member of the Council or if no member of the Council be present and willing to act a member to take the chair.

When if
quorum not
present
meeting to be
dissolved and
when to be
adjourned.

25. If within half an hour from the time appointed for the meeting a quorum is not present the meeting if convened upon the requisition of members shall be dissolved but if not so convened it shall stand adjourned to the same day in the next week at the same time and place and if at such adjourned meeting a quorum is not present any three members who are personally present shall be a quorum and may transact the business for which the meeting was called.

How questions
to be decided
at meetings.

26. Every question submitted to a meeting shall be decided in the first instance by a show of hands of the members present and entitled to vote and in the case of an equality of votes the Chairman shall both on the show of hands and on a poll have a casting vote in addition to the vote or votes to which he may be entitled as a member.

Casting vote.

What is to
be evidence of
the passing of
a resolution
where poll not
demanded.

27. At any General Meeting unless a poll is demanded by the Chairman or by at least five members personally present and entitled to vote at such meeting a declaration by the Chairman that a resolution has been carried or carried by a particular majority or lost or not carried by a particular majority and an entry to that effect in the book of proceedings of the Faculty shall be conclusive evidence of the fact without proof of the number or proportion of the votes recorded in favour of or against such resolution.

Poll.

28. If a poll is demanded as aforesaid it shall be taken in such manner and at such time and place as the Chairman of the meeting

directs and either at once or after an interval or adjournment or otherwise and the result of the poll shall be deemed to be the resolution of the meeting at which the poll was demanded.

29. The Chairman of a General Meeting may with the consent of the meeting adjourn the same from time to time and from place to place but no business shall be transacted at any adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place.

Power to
adjourn
General
Meetings.

30. The demand of a poll shall not prevent the continuance of a meeting for the transaction of any business other than the question on which a poll has been demanded. Any poll duly demanded on the election of a Chairman of a meeting or on any question of adjournment shall be taken at the meeting without adjournment.

Business may
proceed not-
withstanding
demand of poll
In what cases
poll taken
without
adjournment.

VOTES AT GENERAL MEETINGS

31. On a show of hands and at a poll every member present in person shall have one vote. Provided that no member other than a Fellow shall be entitled to vote upon any resolution altering any of the Byelaws relating to Fellows as a class or affecting the Fellows as a class (whether in relation to their election or the Byelaws or Regulations applicable to the Fellows as a class). All votes shall be given personally and proxies shall not be allowed.

Voting rights.

FIRST FELLOWS

32. The Council shall nominate as Fellows those persons who at the date of the incorporation of the Faculty are Fellows of the existing Faculty and those who accept nomination and comply with the Byelaws and Regulations shall be and are herein described as First Fellows.

First Fellows.

FIRST HONORARY MEMBERS

33. The Council shall nominate as Honorary Members those persons who at the date of the incorporation of the Faculty are Honorary Members of the existing Faculty and who are not qualified for nomination under the last preceding Byelaw and those who accept nomination and comply with the Byelaws shall be and are herein described as First Honorary Members.

First Honorary
Members.

FIRST MEMBERS

34. The Council shall nominate as Members those persons who at the date of the incorporation of the Faculty are members of the existing Faculty and who are not qualified for nomination under the last preceding Byelaw or under Byelaw 32 and those who accept nomination and comply with the Byelaws and Regulations shall be and are herein described as First Members.

First Members.

HONORARY OFFICERS

35. The Honorary Officers of the Faculty shall consist of the President the Immediate Past President (if any) and two Vice-Presidents each of whom must be a Fellow and the Honorary Treasurer the Honorary Secretary or Honorary Secretaries and the

Honorary
Officers.

Honorary Librarian each of whom must be a member. The officers aforesaid shall be elected or appointed in such manner and shall hold office for such term and shall have and enjoy such duties powers and privileges as shall be determined by the Regulations. The Council shall also have power to appoint any distinguished person as a Patron or Vice-Patron of the Faculty. An Honorary Officer shall ipso facto vacate his office if he ceases to be a member.

THE COUNCIL

Council of
Management.

36. The Council shall be composed of the President the Immediate Past President (if any) the Vice-Presidents the Honorary Treasurer and the Honorary Secretary or Honorary Secretaries all ex officio. In addition to the foregoing ex-officio members there shall (subject to Byelaw 37) be the following additional members of the Council (i) a Branch Representative elected annually by each Branch to represent such Branch and (ii) nine ordinary members of the Council three of whom shall always be Fellows and six of whom shall always be Members. Every Branch Representative or ordinary member of the Council must be a member.

Increase or
reduction in
the number
of members
of Council.

37. The Faculty in General Meeting may from time to time increase or reduce the number of ordinary members of the Council but so that the proportion of Fellows and Members being ordinary members of the Council shall be maintained.

Vacancy on
appointment
of Honorary
Officer.

38. The appointment or election of a Branch Representative or of an ordinary member of the Council to be an Honorary Officer of the Faculty (other than as Editor of the Journal or Honorary Librarian) shall be deemed to create a casual vacancy among Branch Representatives and ordinary members of the Council (as the case may be).

Power of
Council to
co-opt.

39. Any casual vacancy among the Branch Representatives on the Council may be filled by the Branch Council of the Branch concerned. Any casual vacancy among the ordinary members of the Council may be filled by the Council. Any member appointed to fill a casual vacancy shall hold office only until the close of the Ordinary General Meeting following his appointment but shall then be eligible for re-election.

Council
may act
notwithstanding
vacancies.

40. The Council may act notwithstanding any vacancy in their body provided that if their number be or be reduced below the number fixed by or in accordance with the Byelaws as the quorum for a meeting of the Council the members for the time being may act for the purpose only of filling vacancies in the Council or convening a General Meeting of the Faculty.

When a
member of
Council
vacates office.

41. The office of a member of the Council shall ipso facto be vacated and an Honorary Officer shall ipso facto vacate office as such—

- (a) If he become bankrupt or suspend payment or compound with his creditors ;
- (b) If he be found lunatic or become of unsound mind ;
- (c) If he cease to be a member ;
- (d) If by notice in writing he shall resign office.

ROTATION OF MEMBERS OF COUNCIL

42. At the Ordinary General Meeting in every year one-third of the ordinary members of the Council for the time being or if their number is not a multiple of three the number nearest to but not exceeding one-third shall retire from office Except where otherwise provided by the Byelaws or the Regulations a retiring member of the Council shall hold office until the close of the Ordinary General Meeting at which he retires and shall be eligible for re-election Subject to the provisions of the Byelaws the election of members to fill vacancies in the membership of the Council shall be carried out in accordance with the Regulations.

Rotation of
retirement of
members of
Council.

43. The members of the Council to retire in every year shall be those who have been longest in office since their last election but as between persons who became or were elected members of the Council on the same day those to retire shall (unless they otherwise agree among themselves) be determined by lot.

Order of
rotation.

44. The Faculty may by resolution remove any ordinary member of the Council before the expiration of his period of office and may appoint another qualified person in his stead.

Removal of
member of
Council.

PROCEEDINGS AT MEETINGS OF THE COUNCIL

45. The Council may meet together for the dispatch of business adjourn and otherwise regulate their meetings and proceedings as they think fit The number of members of the Council to form a quorum shall be such number as shall be prescribed by the Regulations Unless otherwise determined by the Regulations four members shall form a quorum.

Meetings of
Council
Quorum.

46. An Ordinary Meeting of the Council shall unless the President shall otherwise direct be held at least once every three months at such time and place as the Council shall determine The President may at any time and the Honorary Secretary shall upon a requisition in writing from the President or from any four members of the Council stating the purposes for which the meeting is to be convened convene an Extraordinary Meeting of the Council A clear seven days' notice stating the purposes of meeting shall be given to the members of the Council No member of the Council whilst out of the British Isles shall be entitled to notice of an Extraordinary Meeting of the Council.

Ordinary and
Extraordinary
Meetings of
Council.

47. For every meeting of the Council or of any Committee of the Council an agenda paper shall be issued not less than seven clear days before the day of the meeting containing information as to the time and place of meeting and the business to be considered but if in the opinion of the President or any three members of the Council a case of emergency has arisen a meeting may be convened and an agenda paper issued on a shorter notice.

Agenda papers.

48. Questions arising at any meeting shall be decided by a majority of votes and in case of an equality of votes the Chairman of the meeting shall have a second or casting vote.

Decision of
questions at
meetings of
Council.

49. The President or in his absence or if he be unwilling to act the Senior Vice-President or in his absence or if he be unwilling to act the Junior Vice-President shall take the chair at such meetings

Chairman of
Council.

of the Council as he shall attend but otherwise the members of the Council present shall choose some one of their number to be Chairman at such meeting.

Power of
meeting.

50. A meeting of the Council for the time being at which a quorum is present shall be competent to exercise all or any of the authorities powers and discretions by or under the Byelaws and Regulations vested in or exercisable by the Council generally.

Proceedings of
Committees.

51. The meetings and proceedings of any Committee appointed by the Council shall be governed by the provisions in the Byelaws and Regulations contained for regulating the meetings and proceedings of the Council so far as the same are applicable thereto and are not superseded by any Rules made by the Council.

When acts
of Council or
Committee valid
notwithstanding
defective
appointment
etc.

52. All acts done at any meeting of the Council or of a Committee appointed by the Council or by any person acting as a member of the Council or of such a Committee shall notwithstanding that it shall afterwards be discovered that there was some defect in the appointment of such member of the Council or of the Committee or person acting as aforesaid or that they or any of them were disqualified or had vacated office be as valid as if every such person had been duly appointed and was qualified to be and had continued to be a member of the Council or of the Committee.

Resolution
without meeting
of Council.

53. A resolution in writing signed by all the members of the Council shall be as valid and effectual as if it had been passed at a meeting of the Council duly called and constituted.

Books and
papers open
to inspection.

54. All records books and papers shall at all times be open to the inspection of members of the Council.

POWERS OF THE COUNCIL

General powers
of Faculty
vested in
Council.

55. The Council in addition to the powers and authorities by the Byelaws or by the Regulations expressly conferred upon them may exercise all such powers and do all such acts and things as may be exercised or done by the Faculty and are not hereby directed or required to be exercised or done by the Faculty in General Meeting but subject nevertheless to the provisions of the Byelaws and to any directions from time to time given by the Faculty in General Meeting and not inconsistent with the Byelaws provided that no such directions shall invalidate any prior act of the Council which would have been valid if such directions had not been given.

Specific
powers given
to Council.

56. Without prejudice to the general powers conferred by the last-preceding Byelaw and so as not in any way to limit or restrict those powers and without prejudice to the other powers conferred by the Byelaws or by the Regulations it is hereby expressly declared that the Council shall have the following powers that is to say power:—

To elect
Fellows
Honorary
Members and
Members.

- (1) To elect Fellows Honorary Members and Members and for such purpose to make vary or rescind such Rules specifying such qualifications for admission to fellowship honorary membership and membership as they may from time to time think fit but subject always to the provisions of the Byelaws and of the Regulations.

- (2) To purchase hire or otherwise acquire for the Faculty any property rights or privileges which the Faculty is authorised to acquire at or for such price or consideration and generally on such terms and conditions as the Council may think fit and to let sell or mortgage the same as may be deemed expedient in the interests of the Faculty: To acquire property.
- (3) To appoint and remove or suspend Examiners Assistant Examiners Librarians Managers Treasurers officers clerks agents and servants for permanent temporary or special services and to determine their duties and powers and fix their salaries or emoluments and to require security in such instances and to such amount as the Council shall think fit: To appoint officers etc.
- (4) To appoint any persons to act as Trustees for the Faculty of any property belonging to the Faculty or in which it is interested or for any other purposes and to execute and do all such deeds and things as may be requisite in relation to any such trust: To appoint Trustees.
- (5) To execute in the name and on behalf of the Faculty in favour of any member or other person who may incur or be about to incur any personal liability for the benefit of the Faculty such mortgages of the Faculty's property (present and future) as the Council shall think fit and any such mortgage may contain a power of sale and such other powers covenants and provisions as shall be agreed upon: To give security by way of indemnity.
- (6) To delegate any of their powers to Committee consisting (subject to the provisions of the Regulations) of such members (whether members of the Council or not) as the Council may think fit Any Committee appointed by the Council shall in exercise of the powers delegated to them conform to any regulations or directions which the Council may from time to time make or give for their guidance: To delegate power to Committees.
- (7) With the sanction of a General Meeting to raise any loan or loans for the purposes of the Faculty in any manner upon any security and on terms authorised by such meeting and to issue any debentures or debenture stock or create any mortgage or charge to secure the same: To borrow money.
- (8) Subject to the Byelaws Regulations and Rules for the time being in force the Council may do all other lawful things which they consider conducive to the interest or good management of the Faculty or the promotion of its objects: To act for the Faculty.
- (9) The Council may from time to time make Rules for the management of the Faculty but so that no Rules so made shall conflict with the Byelaws or the Regulations. To make Rules.

57. The Council may establish print and publish any of the periodicals circulars and calendars mentioned in the Act as the Council may from time to time determine and copies thereof may be sold and distributed at such prices and on such terms as may from time to time be determined by the Council. To publish literature.

In particular a Journal under the title of "British Homœopathic Journal" shall be published by the Faculty at such intervals as the

Council may from time to time determine The Journal shall be conducted by an Editor or Editors who shall be responsible for all that appears therein except such matters as are inserted in accordance with the Byelaws and Regulations or by direction of the Council.

A copy of the Journal shall be sent to all members and Associates whose annual subscriptions are not in arrear and to all Corresponding Members subject to payment of the price fixed as above provided.

To appoint
Extension and
Examination
Committees.

58. In addition to the power of appointing Committees hereinbefore contained the Council shall have power to appoint an Extension Committee and an Examination Committee and to define their respective duties.

MINUTES

Minutes to
be made.

59. The Council shall cause minutes to be duly entered in books provided for the purpose—

Of all appointments of officers ;

Of the names of the members of the Council present at each meeting of the Council and of any Committee of the Council ;

Of all orders made or directions given by the Council and Committees of the Council ;

Of all resolutions and proceedings of General Meetings of the Faculty and of meetings of the Council and Committees of the Council.

And any such minutes of any meeting of the Council or of any Committee aforesaid or of the Faculty if purporting to be signed by the Chairman of such meeting or by the Chairman of the next succeeding meeting shall be receivable as prima facie evidence of the matters stated in such minutes.

REGISTER OF FELLOWS AND MEMBERS AND LIST OF CORRESPONDING MEMBERS AND ASSOCIATES

Register.

60. (i) A Register shall be kept wherein shall be entered the name and address of every Fellow Honorary Fellow Honorary Member and Member with the date of his election and such other information as the Council may direct.

List.

(ii) A list shall be kept wherein shall be entered the name and address of every Corresponding Member or Associate with the date of his election.

SECRETARY AND OTHER STAFF

Secretary
and staff.

61. The Council may appoint and remove or suspend paid Secretaries of the Faculty and also a temporary substitute for any paid Secretary but no paid Secretary or other officer nor any substitute for a paid Secretary or other officer shall be a member of the Council.

62. Any paid Secretary or other officer may be appointed from among the members.

THE SEAL

Seal.

63. The Council shall provide a seal It shall bear such device and motto as the Council may from time to time determine. The Council shall provide for the safe custody of the seal and the seal

shall not be affixed except by the authority of the Council or of a Committee of the Council previously given and in the presence of two members of the Council at the least who shall sign every instrument to which the seal is affixed and every such instrument shall be countersigned by one of the Secretaries or some other person appointed by the Council.

64. Immediately after the sealing of any document an entry of such sealing shall be made in a minute or other book of record of the Faculty together with particulars of the document sealed and a reference to the minute authorising such sealing and such entry shall be signed by one of the members of the Council who shall have attested the sealing of such document.

Record to be kept of sealings.

FINANCIAL

65. Any Secretaries or other officers and servants (other than the Honorary Secretary and Honorary Treasurer) who may from time to time be appointed by the Council may respectively be paid such salaries wages or other remuneration for services to be rendered as the Council may from time to time determine.

Payment of salaries.

66. The funds of the Faculty shall be applied in defraying current expenses and subject to the directions of the Council such funds may be applied in purchasing lands or buildings or in building or renting or furnishing suitable premises for the use of the Faculty and for such other purposes as shall be approved by the Council with a view to the promotion of the objects or of any of the objects of the Faculty.

Power to defray current expenses purchase and rent property.

67. The Council shall cause true accounts to be kept of all sums of money received and expended by the Faculty and the matters in respect of which such receipt and expenditure take place of all sales and purchases of goods by the Faculty and of the assets credits and liabilities of the Faculty. The books of account shall be kept at the office or at such other place or places as the Council thinks fit and shall at all times be open to the inspection of members of the Council.

Accounts to be kept.

68. Subject to any reasonable restrictions as to the time and manner of inspecting the same that may from time to time be imposed by the Faculty in General Meeting the books and accounts of the Faculty shall be open to the inspection of the members during office hours.

Inspection by Members.

69. At the Ordinary General Meeting in every year the Council shall lay before the Faculty an income and expenditure account for the period since the preceding account or in the case of the first account since the incorporation of the Faculty made up to a date not more than six months before the meeting together with a balance sheet containing a summary of the assets and liabilities of the Faculty made up as at the same date.

Annual account and balance sheet.

70. Every such balance sheet shall be accompanied by a report of the Council as to the state and condition of the affairs of the Faculty and as to the amount (if any) which they propose to carry to the reserve fund and the report and balance sheet shall be signed by the President and by two other members of the Council

Annual report of Council.

and countersigned by an Honorary Secretary The Auditors' report shall be attached to the balance sheet and shall be read before the Faculty in General Meeting.

Copies to be
sent to
members.

71. A printed copy of every such income and expenditure account and balance sheet and of the certificate thereon of the Auditor or Auditors and of the said report of the Council shall at least seven days previously to the Ordinary General Meeting be served on every member in the manner in which notices are hereinafter directed to be served.

Auditors.

72. The Faculty at each Ordinary General Meeting shall appoint an Auditor or Auditors to hold office until the next Ordinary Meeting.

Restriction on
appointment
of Auditors.

73. No member of the Council or other officer of the Faculty shall be capable of being appointed Auditor of the Faculty The Council may appoint the first Auditors or may fill any casual vacancy in the office of Auditor but the person so appointed shall only hold office until the next Ordinary General Meeting when he shall retire and become eligible for re-election.

Reserve fund
and disposition
thereof.

74. The Council may from time to time reserve or set apart out of the moneys of the Faculty such sums as in their judgment are necessary or expedient to be at the discretion of the Council applied in providing against losses on leasehold or other property subject to depreciation or to meet claims on or other liabilities of the Faculty or to be used as a sinking fund to pay off debentures or other incumbrances of the Faculty or for any other purpose of the Faculty but no part of the reserve fund shall be employed in carrying on the current business of the Faculty except in pursuance of a resolution passed by a majority of not less than three-fourths of the members of the Council present and voting at a meeting of the Council unless and until the claims liabilities debentures and incumbrances in respect of which or other purposes for which such reserve fund was set apart shall have been fully discharged satisfied or ended.

BRANCHES

Constitution
of Branches.

75. With a view to the advancement of the objects of the Faculty members practising in a local area may (subject to the approval of the Council) form themselves into Branches.

It shall rest with the Council from time to time to determine recognise and declare what bodies of members shall be Branches and what shall be the local area of each Branch and accordingly the Council shall have full power from time to time to amalgamate sub-divide dissolve and modify Branches and the local areas thereof Nevertheless not less than one month's notice in all cases shall be given to any Branch in whose boundaries or area any change is proposed.

In determining the boundaries or areas of Branches the Council shall have regard to the expressed wishes of the local bodies of members concerned and to the facilities of communication by railway and otherwise and the opportunities thus afforded to members of local bodies for meeting to transact the business thereof and to the expediency of making such boundaries coincide with those of local government areas whether counties or other administrative areas of the country.

76. (a) Subject to the Byelaws and the Regulations each Branch Rules for shall be free to govern itself in such manner as it shall think fit and Branches. for that purpose to make from time to time such rules as it may think fit and to repeal or alter the same as and when it shall consider it expedient.

(b) The rules so made and for the time being in force shall be binding on the members constituting the Branch in reference to which they are made. Provided that such rules shall be submitted for approval to the Council and shall not come into operation unless and until they are approved by the Council.

77. A Branch shall not be deemed to be an agent for and shall Branches not have no power to impose any responsibility or liability on or to agents of pledge the credit of the Faculty in respect of any acts expenses Faculty. matters or things done or incurred by the Branch or any member thereof and the rules of each Branch shall contain a provision to that effect in such form as may be approved by the Council.

78. The Honorary Treasurer of the Faculty shall on application Contributions by the Branch concerned annually pay or allow out of the funds to Branch of the Faculty to the Treasurer of such Branch such sum not funds. exceeding ten shillings and sixpence as the Council shall order to be paid in respect of each person who is a member or Associate of that Branch as at the 31st day of December then last past and who shall have duly paid his annual subscription to the Faculty. The Council may at its discretion order further contributions to be made to any Branch by the Faculty.

79. The management of the affairs of each Branch shall be vested Branch in a Branch Council composed of members appointed in accordance Councils. with the rules of the Branch.

80. Every Branch shall have an Honorary Secretary who shall Branch be a member of the Faculty and such Honorary Secretary or such Honorary other official of the Branch as the Council may approve shall be Secretaries. the official medium of communication with the Faculty and with other Branches.

81. The Council shall cause to be sent to the Honorary Secretary Exchange of of every Branch a summary of the business transacted at meetings information. of the Council and the Honorary Secretary of every Branch shall forward to the Council a copy of the minutes of every meeting of the Branch Council.

82. All papers read before any meeting of a Branch shall be Papers to be forwarded by the Honorary Secretary of the Branch to the Editor forwarded for publication (if thought fit) in the Journal. to Editor.

NOTICES

83. A notice may be served by the Faculty upon any member How notices Corresponding Member or Associate either personally or by sending to be served. it through the post in a prepaid letter envelope or wrapper addressed to such member Corresponding Member or Associate at his registered place of address.

84. Each member or Associate whose registered place of address Residence is not in the British Isles may from time to time notify in writing abroad.

to the Faculty an address in the British Isles which shall be deemed his registered place of address within the meaning of the last preceding Byelaw.

Notice where
no address
registered.

85. As regards those members or Associates who have no registered place or address a notice posted up in the office shall be deemed to be well served on them at the expiration of twenty-four hours after it was so posted up.

When notice
may be
given by
advertisement.

86. Any notice required to be given by the Faculty to the members or Associates or any of them and not expressly provided for in the Byelaws shall be sufficiently given if given by advertisement. Any notice required to be or which may be given by advertisement shall be advertised once in two daily newspapers to be selected by the Council.

When notice by
post deemed
to be served.

87. Any notice sent by post shall be deemed to have been served on the day following that on which the letter envelope or wrapper containing the same is posted and in proving such service it shall be sufficient to prove that the letter envelope or wrapper containing the notice was properly addressed and stamped and put into the post office.

How notices
are to be
signed.

88. All notices shall be signed by or have printed at the foot thereof the name of the Secretary or such other person in his place as the Council shall appoint except in the case of a meeting convened by requisition in accordance with the Byelaws and in that case shall be signed by or have printed at the foot thereof the names of the members convening the meeting.

INDEMNITY AND RESPONSIBILITY

Indemnity.

89. Every Secretary or other officer or servant of the Faculty (whether honorary or otherwise) shall be indemnified by the Faculty against and it shall be the duty of the Council out of the funds of the Faculty to pay all costs losses and expenses which any such Secretary officer or servant may incur or become liable for by reason of any contract entered into or act or deed done by him in the proper course of his duties as such Secretary officer or servant or in any way in the discharge of his duties including proper travelling expenses incurred in or about the business of the Faculty.

Individual
responsibility
of member
of Council.

90. No member of the Council Trustee or other officer of the Faculty shall be liable for the acts receipts neglects or defaults of any other member of the Council Trustee Secretary or officer or for joining in any receipt or other act for conformity or for any loss or expense happening to the Faculty through the insufficiency or deficiency of any security in or upon which any of the moneys of the Faculty shall be invested or for any loss or damage arising from the bankruptcy insolvency or tortious act of any person with whom any moneys securities or effects shall be deposited or for any loss or damage occasioned by any error of judgment or oversight on his part or for any other loss damage or misfortune whatever which shall happen in the execution of the duties of his office or in relation thereto.

REGULATIONS

91. Save so far as determined or provided by the Act or by the Regulations. Byelaws the constitution and mode of government of the Faculty the rights and obligations of the members and the appointment duties powers and privileges of all officers and of the Council and of all Committees shall be such as may from time to time be prescribed or determined by or in accordance with the Regulations and the Regulations may from time to time be added to amended or altered or repealed by the Council. The Regulations set out in the appendix hereto shall be the first Regulations of the Faculty.

APPENDIX TO BYELAWS

REGULATIONS

INTERPRETATION

1. In these Regulations (where not repugnant to the context)—
 - The expression "the Byelaws" means the Byelaws for the time being of the Faculty ;
 - Words occurring in these Regulations and also occurring in the Byelaws shall bear the same respective meanings in these Regulations as they bear in the Byelaws ;
 - Words importing only the singular number include the plural number and vice versa ;
 - Words importing only the masculine gender include the feminine gender ;
 - Words importing persons shall include corporations ;
 - Expressions defined in the Byelaws shall have the same meanings in these Regulations. ●
2. These Regulations shall be construed so as not to conflict with the Byelaws.

ASSOCIATES

3. Any person who was an Associate of the existing Faculty at the date of the incorporation of the Faculty shall be entitled to become an Associate and any person who is a medical practitioner duly registered in a part of the British Empire and holding a qualification recognised by the General Medical Council of Great Britain shall be qualified for election as an Associate. No person who is a member shall in any circumstances whatsoever be qualified for election as an Associate. Associates shall be entitled to attend and speak at sessional meetings of the Faculty and to such other privileges (not inconsistent with the provisions of the Byelaws and these Regulations) as the Council may from time to time determine.

A candidate for associateship shall be nominated by two members who shall vouch that the candidate fulfils the requisite qualifications for associateship and that he is a proper person to be elected. The names of candidates for associateship shall be included in the agenda paper for the meeting of the Council at which such names are to be submitted and shall be printed and circulated with the agenda for the first Sessional Meeting next succeeding their nomination.

Nomination forms of candidates must be sent to the Honorary Secretary who shall bring the same before the Council.

The names of candidates for associateship shall be submitted to the Council and a vote taken. A majority of four-fifths of the members of the Council present and voting at the meeting shall be necessary for the election of any applicant to associateship.

4. An Associate shall only be admitted to associateship after signing such declaration as may from time to time be prescribed by the Council and after signing such form of application and agreement to be bound by the Byelaws and Regulations of the Faculty as the Council may from time to time require.

Every Associate shall pay an annual subscription of two guineas such subscription to be paid to the Honorary Treasurer in advance on the first day of January in each year the first payment becoming due on admission save and except that an Associate admitted after the thirtieth day of June in any year shall only be liable to pay half the annual subscription for the then current year.

THE COMMON SEAL

5. The Council shall provide for the safe custody of the seal.

6. The book containing a record of sealings shall be placed on the table at each meeting of the Council and shall at all times during office hours be open to the inspection of all members of the Council.

ALTERATION OF BYELAWS AND REGULATIONS

7. Any member of the Council desiring to propose a new Byelaw or Regulation or amendment to or alteration in or repeal of an existing Byelaw or Regulation must give notice of motion to the Honorary Secretary at least one month previous to the meeting of the Council at which it is to be brought forward and the terms of the motion shall be placed upon the agenda for that meeting and circulated to all members of the Council.

8. Every enactment alteration or repeal of a Byelaw or Regulation shall be entered together with the date by the Honorary Secretary in a copy of the printed Byelaws and Regulations kept for that purpose and shall be initialled by the President and such copy shall be the authoritative copy of the Byelaws and Regulations until the next reprinting of the Byelaws and Regulations.

PROCEEDINGS AT GENERAL MEETINGS

9. The business to be transacted at an Ordinary General Meeting shall be—

(a) Such business as by the Byelaws or the Regulations shall for the time being be appointed to be transacted at such meeting; and

(b) To consider any motion brought forward by the Council or by any individual member.

10. Any member desiring to bring forward a motion for consideration at an Ordinary General Meeting of the Faculty must give notice of such motion to the Honorary Secretary at least twenty-eight days

before the date of the meeting at which such motion is to be considered and the terms of such motion shall be circulated with the agenda to all the members resident in the British Isles. If the motion is adopted and passed by the meeting it shall be referred to the Council for any necessary action and the Council shall if necessary report to the next Ordinary General Meeting or to an Extraordinary General Meeting if the General Meeting at which such motion has been considered so requires.

ELECTION OF ORDINARY MEMBERS OF THE COUNCIL

11. There shall be dispatched to each member at his registered address at least two months before the date of each Ordinary General Meeting a notice of the number of vacancies amongst the ordinary members of the Council to be filled at the forthcoming election together with a list of the candidates nominated by the Council and inviting additional nominations for such vacancies from amongst the members. Such notice shall state the latest date by which additional nominations must be received.

12. Every vacancy in the number of ordinary members of the Council (other than a casual vacancy) shall be filled in the following manner :—

- (i) Every candidate for membership of the Council (not being a candidate nominated by the Council) shall be nominated in writing by at least two members ;
- (ii) A candidate nominated to fill a vacancy caused by the retirement of an ordinary member of the Council being a Fellow must be a Fellow and a candidate nominated to fill a vacancy caused by the retirement of an ordinary member of the Council being a Member must be a Member ;
- (iii) Every nomination paper together with the candidate's written consent to stand for election shall be sent to the Honorary Secretary of the Faculty so as to reach him at least one month prior to the date of the Ordinary General Meeting ;
- (iv) If the number of candidates for election shall not be greater than the number of vacancies such candidates shall (without any vote being taken) be deemed to be elected at the Ordinary General Meeting but if the number of candidates for election shall exceed the number of vacancies the election of ordinary members of the Council shall be effected at the Ordinary General Meeting and so that each member of the Faculty shall be entitled to vote in favour of any number of candidates not exceeding the number of vacancies to be filled.

13. In the case of a poll the votes shall be counted by scrutineers to be appointed by the meeting and the result reported to the meeting or to a meeting of the Council and the Council shall declare which candidates are elected.

14. In the event of an equality of votes on the election of members to be ordinary members of the Council the Council shall decide by a ballot of the members of the Council present and voting as to which of those with an equal number of votes are to be deemed elected to the Council.

15. The election of new members to the Council as aforesaid shall take effect as from the close of the Ordinary General Meeting at which the members of the Council whose places such new members are elected to fill retire from office.

ELECTION OF BRANCH REPRESENTATIVES

16. There shall be dispatched by the Honorary Secretary of the Branch concerned to each member of the Branch at his registered address at least two months before the date of each Ordinary General Meeting of the Faculty a notice stating the name and address of the retiring Branch Representative and the name and address of any person nominated by the Branch Council for election as Branch Representative and inviting additional nominations for the vacancy from among the members of the Branch. Such notice shall state the latest date by which additional nominations must be received.

17. Any vacancy in the office of Branch Representative of a Branch (other than a casual vacancy) shall be filled in the following manner:—

(i) Every candidate for membership of the Council as a Branch Representative of the Branch concerned (not being a candidate nominated by the Branch Council concerned) shall be nominated by at least two members who are members of the Branch ;

(ii) Every nomination paper together with the candidate's written consent to stand for election shall be sent to the Honorary Secretary of the Branch concerned so as to reach him at least six weeks prior to the date of the Ordinary General Meeting of the Faculty ;

(iii) If there shall be only one candidate for election such candidate shall (without any vote being taken) be deemed to be elected but if the number of candidates for election shall exceed one the election of the Branch Representative shall be effected at a General Meeting of the Branch to be held at least one month prior to the date of the Ordinary General Meeting of the Faculty and so that each member who is a member of the Branch concerned shall be entitled to vote in favour of one candidate.

18. In the case of a poll the votes shall be counted by scrutineers to be appointed by the meeting and the result reported to the Branch meeting or to a meeting of the Branch Council concerned and the Branch Council shall declare which candidate is elected.

19. In the event of an equality of votes on the election of a Branch Representative the Branch Council concerned shall decide by a ballot of the members of such Branch Council present and voting as to which of those with an equal number of votes is to be deemed to be elected to the Council of the Faculty as a Branch Representative.

20. The Honorary Secretary of the Branch concerned shall not less than three weeks before each Ordinary General Meeting of the Faculty give notice in writing to the Honorary Secretary of the Faculty of the name and address of the Branch Representative so elected.

21. The election of new members to the Council as Branch Representatives as aforesaid shall take effect as from the close of the Ordinary General Meeting at which the members of the Council whose places such new members are elected to fill retire from office.

PROCEEDINGS OF MEETINGS OF COUNCIL

22. The quorum for a meeting of the Council shall be four.

23. On any motion for the election of Fellows Honorary Members or Associates the vote shall be taken by ballot.

24. Except where otherwise provided the votes of members of the Council shall be taken as the President or Chairman may think fit but any three members of the Council present shall have the right to demand a ballot. Every ballot shall be taken in such manner as the Council shall from time to time prescribe.

25. A copy of the unconfirmed minutes of any meeting of the Council or of any Committee shall be issued to each member thereof as soon as practicable after the meeting.

OFFICERS OF THE FACULTY

26. The Officers of the Faculty are the President the Immediate Past President (if any) and two Vice-Presidents each of whom must be a Fellow the Honorary Treasurer the Honorary Secretary or Honorary Secretaries the Editor or Editors of the Journal and the Honorary Librarian each of whom must be a member.

PRESIDENT

27. The President shall be proposed for election on the nomination of the Council or on the nomination in writing of any two members (such latter nomination to be made in writing and to be sent to the Honorary Secretary of the Faculty so as to reach him at least one month prior to the date of the Ordinary General Meeting and to be accompanied by a notice in writing signed by the person to be proposed of his willingness to be elected) The President shall be elected annually at the Ordinary General Meeting. The person elected shall be installed in office at the Ordinary General Meeting at which he is elected when his immediate predecessor in office shall retire and become Past President.

28. No person shall be qualified for election as President unless he shall have held office as Vice-President of the Faculty or as a Vice-President of the existing Faculty or the unincorporated association called "the British Homœopathic Society" for a period of two years.

29. No person shall hold office as President for more than three years in succession.

30. The President shall be ex officio Chairman of all Committees but he shall have power to delegate the duties of Chairman of a given Committee to any other member of that Committee.

31. In the case of emergency and of its being impossible to summon a meeting of the Council or the appropriate Committee in time to deal with such emergency the President shall take such immediate action as may seem necessary to him in the circumstances and shall report the matter to the next meeting of the Council or of the appropriate Committee as the case may be.

THE IMMEDIATE PAST PRESIDENT

32. The Immediate Past President shall be ex officio a member of all Committees.

VICE-PRESIDENTS

33. The Vice-Presidents shall be proposed for election on the nomination of the Council or on the nomination in writing of any two members (any such latter nomination to be made in writing and to be sent to the Honorary Secretary of the Faculty so as to reach him at least one month prior to the date of the Ordinary General Meeting and to be accompanied by a notice in writing signed by the person to be proposed of his willingness to be elected) The Vice-Presidents shall be elected annually at the Ordinary General Meeting The persons elected shall be installed in office at the Ordinary General Meeting at which they are elected when their predecessors in office shall retire.

34. No person shall hold office as a Vice-President for more than two years in succession.

35. A Vice-President shall be ex officio a member of all Committees.

36. The Senior Vice-President or in his absence the Junior Vice-President shall in the unavoidable absence of the President or in the case of his inability or unwillingness to act undertake his duties both in routine business and on public occasions The Senior Vice-President shall be that one of the Vice-Presidents who shall longest have held such office and in case of equality shall be that one nominated as such by the Council.

THE HONORARY TREASURER THE HONORARY SECRETARY THE EDITOR OF THE JOURNAL AND THE HONORARY LIBRARIAN

37. The Honorary Treasurer the Honorary Secretary or Honorary Secretaries the Editor or Editors of the Journal and the Honorary Librarian shall each be proposed for election on the nomination of the Council or on the nomination in writing of any two members (any such latter nomination to be made in writing and to be sent to the Honorary Secretary of the Faculty so as to reach him at least one month prior to the date of the Ordinary General Meeting and to be accompanied by a notice in writing signed by the person to be proposed of his willingness to be elected) The Honorary Treasurer the Honorary Secretary or Honorary Secretaries the Editor or Editors of the Journal and the Honorary Librarian shall be elected annually at the Ordinary General Meeting Each of them shall hold office until the next succeeding Ordinary General Meeting when he shall retire but shall be eligible for re-election.

38. The Honorary Treasurer shall pay all moneys received by him on behalf of the Faculty into an account in the name of "the Faculty of Homœopathy" at the Bankers appointed by the Council. He shall keep an account of all moneys received and expended and prepare a quarterly report for each meeting of the Council and an income and expenditure account and balance sheet to be audited in accordance with the Byelaws and at all times be prepared to give such information on the finances of the Faculty as may be required by the Council or any Committee.

39. The Honorary Treasurer may pay without special order the current ordinary expenses of the Faculty but he may not disburse any other sum unless previously authorised to do so by the Council.

40. The Honorary Secretary or Honorary Secretaries shall be responsible for the Register and list of Corresponding Members and Associates for keeping the official copy of the Byelaws and Regulations and entering therein any changes made in them and preparing for the printer a revised edition when ordered by the Council also for the work of the Secretary clerks and generally for the secretarial office and for the correspondence of the Faculty. He or one of them shall summon Ordinary and Extraordinary Meetings of the Faculty and of the Council and of Committees under the direction of the President and Council and shall send out agenda keep and prepare minutes of all meetings and draw up a draft annual report for consideration by the Council. In the case of his or their absence from meetings he or they shall arrange for a substitute to keep minutes. The Honorary Treasurer and the Honorary Secretary or Honorary Secretaries shall each be an ex officio member of all Committees.

41. The Editor or Editors of the Journal shall be responsible for the conduct of the Journal and for all that appears therein except such matters as are inserted in accordance with the Byelaws or the Regulations or by direction of the Council.

42. The Honorary Librarian shall take charge of the books periodicals and papers belonging to the Faculty. He shall see that all books belonging to the Faculty are duly entered in the catalogue and that the periodicals and pamphlets are from time to time suitably bound.

43. In the case of emergency the President may appoint a deputy to act for the Honorary Treasurer Honorary Secretary Editor of the Journal or Honorary Librarian and report his action to the next meeting of the Council.

LIBRARY

44. The Library shall be open for reference and for the loan of books at the ordinary office hours but facility shall also be given for obtaining books on loan on the evenings of the sessional meetings of the Faculty. For any member not able to apply personally application forms will be provided which will entitle him to receive not more than two volumes at a time provided he undertakes to defray the carriage to and from the Library. All books must be returned within a month unless a special application for renewal has been made and must either be returned by hand or by registered post.

45. Any work soiled or injured must be replaced at the expense of the member responsible.

46. A book shall lie upon the Library table in which each member may propose the purchase of such works as he may think suitable for the Library which book shall be laid before the Council at their next meeting and without their order no work shall be purchased.

BANKERS

47. The Council may from time to time determine who shall be the Bankers of the Faculty. All cheques shall be signed by the Honorary Treasurer and in addition by one of such other members of the Council as may be appointed by the Council for this purpose.

In the absence or incapacity of the Honorary Treasurer the President shall authorise the Bank to honour cheques signed by any two of the members of the Council previously appointed by the Council.

FELLOWS

48. Election of members as Fellows shall (except as otherwise provided by Byelaw 5) be by resolution of the Council.

49. A member desirous of becoming a Fellow shall petition the Faculty. Before any such petition is taken into consideration by the Council the President shall certify that the member has fulfilled the conditions requisite for election to fellowship whereupon the members of the Council shall consider whether the three original communications of the petitioner advance and extend the principles and practice of homœopathy. Thereafter the names of the candidates for election as Fellows shall be submitted to the Council and a vote taken. A majority of two-thirds of the members of the Council present and voting at the meeting shall be necessary for the election of any member as a Fellow.

50. (a) Fellows on admission become entitled to the use of the letters "F.F.Hom".

(b) A fellowship diploma bearing the signature of the President and the Honorary Secretary of the Faculty shall be delivered to each Fellow on his election as a Fellow and such Fellow shall thereupon surrender to the Council his membership diploma if any.

(c) Fellowship diplomas shall remain the property of the Faculty and may be withdrawn by the Council if the holder shall be censured or admonished by the Council pursuant to Regulation 64 or if the holder shall be reprimanded pursuant to Regulation 65 and such diploma shall be withdrawn by the Council if the holder shall be expelled under Byelaw 15.

(d) If a Fellow ceases to be a member he shall cease to use the description "Fellow of the Faculty of Homœopathy" and the letters "F.F.Hom".

MEMBERS

51. A candidate for membership shall be nominated by three members who shall vouch that the candidate fulfils the requisite

qualifications for membership and that he is a proper person to be elected :

Provided always that in the case of a candidate engaged in practice outside the British Isles the Council may require a recommendation of the candidate by some authority recognised by the Council for such purpose.

Nomination forms of candidates must be sent to the Honorary Secretary who shall bring the same before the Council.

The names of candidates for membership shall be submitted to the Council and a vote taken. A majority of four-fifths of the members of the Council present and voting at the meeting shall be necessary for the election of any applicant to membership.

52. (a) Members on admission become entitled to the use of the letters " M.F.Hom ".

(b) A membership diploma bearing the signature of the President and the Honorary Secretary of the Faculty shall be delivered to each Member on his election as a Member.

(c) Membership diplomas shall remain the property of the Faculty and may be withdrawn by the Council if the holder shall be censured or admonished by the Council pursuant to Regulation 64 or if the holder shall be reprimanded pursuant to Regulation 65 and such diploma shall be withdrawn by the Council if the holder shall be expelled under Byelaw 15.

(d) If a Member ceases to be a Member he shall cease to use the description " Member of the Faculty of Homœopathy " and the letters " M.F.Hom ".

EXAMINATIONS

Members

53. Candidates for admission to examination for membership must be Associates of the Faculty or be eligible for associateship of the Faculty.

An approved candidate who is not an Associate must however be elected as such before he can be admitted a Member.

54. Details of homœopathic experience must be furnished to the Examination Committee at the time of application. The Examination Committee shall have power to decide whether such experience entitles the applicant to sit for the examination.

55. An examination shall be held at least once a year in London during any month fixed on by the Council.

Every candidate must pass an examination in the principles of homœopathy homœopathic materia medica and therapeutics.

Papers will be set on each of the above subjects together with oral and clinical examinations.

56. The examiners shall report to the Council. Their report shall be confidential and marks shall not be communicated to candidates. Only members of the Council shall have access to the report on any individual candidate.

57. An examination fee of ten guineas shall be payable at the time of application.

Fellows

58. Candidates for admission to examination for fellowship must be Members.

An examination shall be held at least once a year in London during any month fixed on by the Council.

59. Every candidate for election as a Fellow on and after the 7th day of July 1950 shall be required to pass written and clinical examinations of a standard which shall be approved by the Council and which shall be similar to the standard required by other comparable higher examinations.

60. An examination fee of twenty guineas shall be payable at the time of application.

General

61. A candidate who has satisfied the Council shall be so notified by the Honorary Secretary who will require from each candidate for membership an undertaking that he is prepared to sign the membership declaration.

62. The Council shall appoint a panel of Examiners who must be members from which the Examination Committee shall select the Examiners to act at each examination.

63. Honoraria and fees for Examiners shall be fixed from time to time by the Council on the recommendation of the Examination Committee.

64. The Examination Committee shall examine the credentials of all candidates for membership and for any diploma and shall have power to reject such candidates as do not fulfil the requirements of the Byelaws and Regulations.

SUBSCRIPTIONS

65. Each member shall on election as a Member pay such entrance fee (if any) as may for the time being be payable pursuant to a resolution in that behalf of the Council.

Each Fellow shall pay to the Faculty an annual subscription of three guineas such subscription to be paid to the Honorary Treasurer in advance on the 1st day of January in each year.

Any sum paid by a Fellow prior to his election as such in respect of the year current at the date of his election as a Fellow shall be taken as having been paid pro tanto on account of the subscription payable by him as a Fellow in respect of such year.

Each Member (other than an Honorary Member) shall pay to the Faculty an annual subscription of two guineas such subscription to be paid to the Honorary Treasurer in advance on the 1st day of January in each year.

Any sum paid by a Member prior to election as such as an Associate in respect of the year current at the date of his election as a Member shall be taken as having been paid on account of the subscription payable by him as a Member in respect of such year:

Provided that if any Member shall be permanently resident out of the British Isles or if the Council in their absolute discretion shall deem it advisable the annual subscription of such Member shall in respect of any complete year for which he is so permanently resident

out of the British Isles or prevented from practising be reduced to one guinea:

Provided further that no annual subscription shall be payable by a First Fellow or a First Member in respect of any period prior to the 1st day of January 1951.

Each Associate shall pay to the Faculty an annual subscription of two guineas such subscription to be paid to the Honorary Treasurer in advance on the 1st day of January in each year the first payment becoming due on admission save and except that an Associate admitted after the 30th day of June in any year shall only be liable to pay half the annual subscription for the then current year.

OFFENCES

66. No member shall canvass for election to the Council or appointment to any office in the Faculty and no Honorary Member or Member shall solicit recommendations for advancement to the fellowship.

67. If at any time it shall be brought to the notice of the Council that any member or Associate has obtained admission into the Faculty by false statement fraud or imposition or that any member or Associate has been convicted of any criminal offence or has acted in any respect in a dishonourable or unprofessional manner or in a manner calculated to bring discredit on the Faculty or render him unfit to remain a member or Associate or has violated any Byelaw or Regulation of the Faculty relating to members or Associates as the case may be the President and the Council may call the member or Associate before them and having investigated the case and found the charges proved may censure and admonish him or if they deem the case to be of such degree of gravity as cannot be adequately dealt with by censure and admonishment the Council may take steps to expel him pursuant to Byelaw 15.

68. If any member has cause for complaint against another he shall be entitled to claim the protection of the Faculty by first stating his case to the President. The President if he deem the matter a fit subject for inquiry shall with two members (the person complaining and the person complained of each choosing one) investigate the grounds of the accusation and determine whether the matter can be settled by an amicable adjustment or whether it shall be referred to the Council who in such latter event shall decide whether the question in dispute can be adjusted or whether the offending party shall be admonished by the Council or whether the matter shall be brought to the consideration of an Extraordinary General Meeting of the Faculty as conduct deserving a public reprimand in the presence of the whole Faculty or whether the Council shall take steps to expel the offending member under Byelaw 15.

69. Any person who shall announce by placard on any public place or shall publish in any advertisement or circular letter his mode of practice or place of abode or shall sell or cause to be sold any secret remedy or nostrum or shall publish any pamphlet or book in which cases of cure are detailed and the remedies concealed shall not be admissible as a member and moreover if any member shall commit any of the above offences against the Faculty he shall be liable to expulsion.

COMMITTEES

70. Every Committee shall consist of members only but need not consist of members of the Council only. They shall have power subject to the approval of the Council to appoint Sub-Committees from amongst the members with the consent and approval of the President.

71. A Committee or Sub-Committee shall be entitled with the consent and approval of the President to co-opt additional members and such co-opted members may be persons who are not members provided that such co-opted members who are not members shall not exceed one-third of the number of members of the Committee who are members.

72. In the case of Committees other than the Examination Committee a time shall be fixed by the Council within which the business entrusted to the Committee shall be finished and reported to the Council. When a Committee has made its final report to the Council it shall be automatically dissolved unless the Council shall otherwise determine.

73. No expense shall be incurred by any Committee unless a sum of money has been voted by the Council for the special purpose of the Committee.

WORK OF THE FACULTY AND SESSIONAL MEETINGS

74. The Session for promoting the work of the Faculty shall extend from October to June inclusive but so that the Council shall have power of prolonging any Session if thought fit.

75. Meetings of the Faculty shall be held monthly or otherwise (as the Council may decide) during each Session on such dates as shall be determined by the Council.

Such meetings (which in these Regulations are called "Sessional Meetings") shall for no purpose whatsoever be deemed to be General Meetings of the Faculty but shall be held solely for purposes connected with the co-ordination of efforts to spread a knowledge of homœopathy within the ranks of the profession and the advancement and extension of the principles and practice of homœopathy.

Five members personally present shall be a quorum at a Sessional Meeting.

76. The time occupied by Sessional Meetings shall not exceed two and a half hours except by a vote of the majority of the members present. The order of business shall be as follows:—

- (a) The minutes of the preceding meeting read;
- (b) Miscellaneous business;
- (c) Visitors announced and introduced;
- (d) Specimens cases etc. shown;
- (e) Papers read and discussed;
- (f) Meeting closed.

77. Each member is entitled after private business to introduce medical men and women as visitors to the Sessional Meetings on

delivering their names in writing to the President who shall introduce such visitors to the meeting and who shall have power to invite them to take part in the discussions.

78. (a) To secure punctuality in commencement of Sessional Meetings in the event of the President being late one of the Vice-Presidents shall take the chair or in their absence a chairman shall be chosen by the meeting.

(b) Not more than fifteen minutes shall be allowed for the exhibition of specimens.

(c) A member joining in the discussion must address himself to the chair and no interruption to his speech shall be permitted except upon a point of order.

(d) A member may not speak for more than ten minutes on any one question he may not speak a second time except by permission of the Chairman.

(e) Motions for adjournment amendment the "previous question" or the like are new questions and a member who has spoken on the original question or business may speak again when such new business or question has been proposed from the Chair.

(f) Any member may rise to a point of order in such case the member addressing the meeting must thereupon resume his seat.

(g) The direct negative shall be given to a motion by voting against it when put from the Chair and not in the form of an amendment.

(h) After an amendment has been put to the meeting and passed the motion as amended shall be put from the Chair.

(i) A second or further amendment may be proposed as the Chairman is about to put the amendment and an amendment to an amendment may be made and shall be put prior to the original amendment.

(j) In the event of more than one amendment being announced at the same time the priority shall be given to that bearing on the earlier part or wording of the original motion.

(k) All amendments shall be as far as possible submitted in writing.

(l) Voting shall be by show of hands the Chairman having a casting vote.

(m) In the event of a dispute in voting a recount shall be made.

PAPERS

79. All original papers read before the Faculty and its Branches shall become thenceforth the property of the Faculty and shall be deposited with the Editor of the Journal.

The author of a paper read before the Faculty wishing to publish it himself must obtain the sanction of the Council.

No member shall publish or furnish any materials for publishing any transactions of the Faculty without the authority of the Council.

Once in each year the subject-matter of this Regulation shall be published in the Journal of the Faculty.

THE PAID SECRETARY

80. The paid Secretary shall give such security (if any) as may be required by the Council and shall have the general direction of the secretarial office and supervise the work of the clerk or clerks therein. The Secretary shall be bound to secrecy regarding the proceedings at all meetings and shall not divulge any matter to any person except to a member of the Council or of a Committee who may not have been present at the meeting and who in due course will receive the minutes or report of that meeting. He shall see that applications for admission of candidates to examinations are in due form. He shall also interview visitors and candidates seeking information about the Faculty and its examinations and the conditions of entry referring those in search of special information to the appropriate quarter. He shall have authority over the whole household and the domestic arrangements of the Faculty's premises subject to the superior authority of the President Honorary Secretary and Honorary Treasurer and shall be responsible for the several duties of each member of the household.

81. He shall devote so much of his time as the Council may require to the service of the Faculty and his holidays and terms of service shall be determined from time to time by the Council.

ANNUAL REPORT AND REGISTER OF FELLOWS AND MEMBERS

82. An annual report shall be published as a supplement to the Journal which shall contain the report of the Council for the past year presented to the Faculty the Treasurer's report with the audited balance sheet and income and expenditure account a report of the Annual General Meeting a copy of the Register a list of Corresponding Members and Associates and such reports of Committees or memoranda or other matters of general interest to the members as the Council may determine.

83. Copies of each annual report with the Register and list of Corresponding Members and Associates shall be sent to all members Corresponding Members and Associates whose names are on the Register or list of Corresponding Members and Associates.

84. The Register shall be considered as a correct list of all members and it shall be incumbent on each individual to ascertain that his name address and all other particulars are correctly entered therein.

GENERAL

85. In case of any conflict between the Byelaws and the Regulations the provisions of the Byelaws shall prevail.

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